

GZ: 2022-0.083.310 dated February 14, 2022 (Case Number: DSB-D124.0128/22)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the application pursuant to § 22 DSG by Udo A*** (Applicant), represented by W*** Rechtsanwälte GmbH, B***straße *4, *** S***, for the prohibition of the processing of his personal data through the upcoming transmission of information regarding financial criminal proceedings against him or against companies that were owned by him or in which he held executive functions, to the investigative committee concerning the clarification of corruption allegations against ÖVP government members (ÖVP Corruption Investigative Committee) against the Federal Minister of Finance (Respondent) as follows:

- The application is dismissed.

Legal bases: §§ 22 para. 1 and 4 of the Data Protection Act (DSG), BGBl. I No. 165/1999 as amended, Art. 18, 51, 57, and 58 of the General Data Protection Regulation (GDPR) in conjunction with §§ 56, 57 para. 1 and 58 of the General Administrative Procedure Act 1991 (AVG), BGBl. No. 51/1991 as amended, Art. 52a, 53, and 138b of the Federal Constitutional Law (B-VG), BGBl. No. 1/1930 as amended, § 25 of the Procedural Regulation for Parliamentary Investigative Committees (VO-UA), BGBl. I. No. 99/2014 as amended.

REASONING

A. Submissions

1. The applicant submitted a request for the issuance of a mandate decision pursuant to § 22 para. 4 DSG in conjunction with § 57 para. 1 AVG and Art. 58 para. 2 lit. f GDPR on January 24, 2022.

In support, the applicant essentially stated that the minority of the parliamentary investigative committee named "ÖVP Corruption Investigative Committee" had demanded from the respondent to ascertain whether financial criminal proceedings had been initiated against him or against companies that were owned by him or in which he held executive functions since 2015, and to what number these would lead.

The transmission of the affected data to the U-Committee would not be a problem in itself. However, the notorious permeability of U-Committees to media publicity, known at least since the Ibiza U-Committee, is intolerable. It forces him to take precautionary measures against the transmission of any data concerning him to the U-Committee.

On the other hand, it is obviously a case of inadmissible exploratory evidence. The intended data processing does not serve to investigate a "specific completed process in the area of federal enforcement," but rather to find interesting snippets of information for the media.

He is being presented before a political tribunal based on a blanket suspicion that is not substantiated by any substance – with the only recognizable goal of showcasing him to exchange political currency at his expense.

The data processing in question – both the evaluation and the transmission – falls within the scope of the GDPR and the DSG. Therefore, the data processing is only permissible if it complies with the general principles of processing personal data (Art. 5 GDPR) and fulfills a specific permission criterion (Art. 6 GDPR).

The present request pursuant to § 25 para. 2 VO-UA aims at nothing other than obtaining exploratory evidence and contradicts the specificity requirement established by the legislator. His name has been arbitrarily picked from the comprehensive list of "(potential) donors of the ÖVP" and linked to a deeply reputationally damaging, defamatory connection to (merely presumed) financial criminal proceedings and corruption.

Since it is neither constitutionally nor statutorily provided to comply with inadmissible evidence requests, the data processing (evaluation and transmission) is not necessary to fulfill a legal obligation.

Thus, there is no permission criterion in the sense of Art. 6 GDPR.

Furthermore, the request lacks the limitation required by Art. 53 para. 3 B-VG, according to which only files and documents "to the extent of the subject matter of the investigation" may be submitted.

However, there is not even an abstract relevance for the subject matter of the investigation regarding the requested data. There is a violation of the principle of lawfulness of processing according to Art. 5 para. 1 lit. a GDPR. Additionally, there is a violation of the principle of data minimization according to Art. 5 para. 1 lit. c GDPR.

A template is considered by the applicant to be incompatible with the requirements of the GDPR, as it violates the principles of data minimization, legality, and purpose limitation due to the absence of abstract relevance to the subject of investigation. Furthermore, a balancing of interests according to § 1 para. 2 DSG must be in favor of the applicant. The transmission of personal data to the U-Committee is particularly problematic because the confidentiality obligations imposed on the members of the U-Committee and other persons authorized to access the data would simply be regarded as irrelevant by them. Although the VO-UA and the InfOG provide for a prohibition on disclosure and publication in several places, the provision of documents from the investigative committee concerning the alleged bribery of the turquoise-blue federal government ("Ibiza U-Committee") to the media has shown that the U-Committee is as leaky as Swiss cheese and that it is practically impossible to hold those responsible for the data leaks accountable.

There is an imminent danger regarding the data processing in question. It can be assumed that the Federal Minister, if he has not already begun, will start evaluating/collecting the requested data in the coming days and will soon transmit the evaluated data to the U-Committee. This means that the documents will be transmitted from the registry of the National Council to all members of the U-Committee and numerous other persons without prior information and hearing of the affected person, as well as without a closer examination of the content of the documents and the legality of the processing, as soon as they have arrived there. There is a significant and immediate threat to his legitimate confidentiality interests.

2. In a submission dated January 31, 2022, the respondent stated that the data collection request from Parliament ultimately leads to the U-Committee using the Federal Minister of Finance for the purpose of indirect evidence collection through the U-Committee. Although the respondent is formally assigned to the executive state power, as far as he conducts investigations on behalf of a U-Committee, he is functionally acting for the legislative branch. Actions of an administrative authority to implement a request from a U-Committee for conducting investigations according to § 25 para. 3 VO-UA are attributable to the legislative power.

The decision on the purposes of data processing is determined by the investigation order according to § 25 para. 2 and 3 VO-UA and the subject of investigation. The fact that the means of data processing are not also specified and that the respondent has some leeway regarding the technical-organizational use of resources does not change the fact that the purposes of data processing are specified by the U-Committee. It follows that the U-Committee, and not the Federal Minister of Finance, should be qualified as the responsible party.

According to the wording of § 18 DSG, the DSB is established as the national supervisory authority under Art. 51 GDPR. However, from a constitutional perspective, it would not be arguable that the DSB is tasked with overseeing the legislative body. Any potential data protection oversight should be limited to checking whether the relevant data protection provisions were complied with in the handling of personal data obtained in the context of the subject of investigation and the evidence resolution. The present application to the DSB is essentially not against the fact that the requirements of the GDPR were not complied with in the processing of personal data, but against the data collection order of the U-Committee to the respondent. In this respect, there is also no jurisdiction of the DSB. The DSB, as an administrative authority without an explicit constitutional basis, is prohibited from examining acts that are attributable to legislation. This applies even if one assumes that the respondent is not acting as an auxiliary organ of the legislation within the framework of the data collection order, but as an organ of the administration, since even in this case, any prohibition order from the DSB would

materially suspend the data collection order of the U-Committee.

The arguments of the applicant are not suitable to establish an immediate threat to legitimate confidentiality interests according to §§ 22 para. 4 DSG in conjunction with 57 para. 1 AVG. The respondent, as an organ obliged to provide information to the U-Committee, is required to fully comply with all evidence requests within the scope of his responsibilities. In the specific case, the U-Committee has clearly defined which files and documents are to be submitted to Parliament by the Federal Minister of Finance in accordance with the supplementary evidence resolution according to § 25 para. 2 VO-UA. The threat to his legitimate confidentiality interests, as merely claimed by the applicant, arises, if at all, only in the sphere of the U-Committee in Parliament.

The VwGH has recently dealt extensively with the question of whether the GDPR is also applicable to core activities of legislation and has denied this question because this activity falls under Art. 16 para. 2 AEUV and is thus excluded from the material scope of the GDPR according to Art. 2 para. 2 lit a GDPR (VwGH 14.12.2021, Ro 2021/04/0006). Even though these statements are contained in a preliminary ruling request to the CJEU and a decision from the CJEU is still pending, they are... certainly convincing and justifiable, so that due to the lack of applicability of the GDPR, there is no supervisory authority of the Data Protection Authority (DSB). The obligation to provide documents has a sufficient legal basis in accordance with § 1 para. 2 DSG and the interest balancing provided there falls in favor of the permissibility of data use due to the importance of parliamentary control for a democratic society. The further processing of the data in the investigative committee falls, regardless of whether the respondent is responsible for the collection of the data within the framework of an order from the investigative committee or not, exclusively within the responsibility of the Parliament and therefore cannot serve as the basis for a cease-and-desist order directed at the Federal Minister of Finance. It is also noted that an obligated body has no authority to subsequently amend a specific and clearly defined supplementary evidence request as in the present case. The same applies to the assessment of the data protection principles of purpose limitation according to Art. 5 para. 1 lit. b GDPR and data minimization according to Art. 5 para. 1 lit. c GDPR when fulfilling a supplementary evidence request, should one affirm the applicability of the GDPR in the area of investigative committees. The (theoretical) possibility of a data protection violation by members of the investigative committee or other persons entitled to access the data in violation of statutory confidentiality and secrecy obligations can in no way justify the non-compliance with a supplementary evidence request by an obligated body, whose actions according to Art. 18 B-VG may only occur on the basis of laws. Furthermore, there are legal protection options in connection with the investigative committee that are always available to the affected parties.

B. Findings of Facts

1. On October 13, 2021, the request for the establishment of an investigative committee pursuant to § 33 para. 1 second sentence GOG-NR regarding the clarification of corruption allegations against ÖVP government members (ÖVP Corruption Investigative Committee) was submitted to the National Council (4/US 27. GP), and the relevant investigative committee was established on December 9, 2021, during the 133rd session of the National Council.
2. On December 16, 2021, a part of the members of the investigative committee submitted the following request to the respondent pursuant to § 25 para. 2 VO-UA (formatting not reproduced 1:1, markings by the applicant):

[Note by the editor: the graphic file (request to the respondent by a part of the members of the investigative committee) has been removed, as it cannot be pseudonymized in the RIS. The document contains the request to the Federal Minister of Finance to "ascertain against which of the following persons or companies, which were owned by these persons or in which they held executive functions, a financial penalty procedure has been initiated since 2015 and to what number this was conducted." The subsequent enumeration contains the name of the applicant.]

Assessment of Evidence: The findings result from the submissions of the applicant in the complaint letter dated January 24, 2022, the statement of the respondent dated January 31, 2022, as well as from official investigations by the Data Protection Authority (ÖVP Corruption Investigative Committee).

D. From a legal perspective, it follows:

C.1. On the jurisdiction of the Data Protection Authority

The respondent essentially argues that he is formally assigned to the executive state authority. However, as far as he conducts investigations on behalf of an investigative committee, he is functionally acting for the legislative branch, and therefore the jurisdiction of the Data Protection Authority is not applicable. In this context, the respondent refers to the case law of the Constitutional Court, according to which bodies acting on behalf of another state function are, according to the consistent case law of the Constitutional Court, attributed to the state function for which they act (VfSlg. 10.290/1984, 11.961/1989, 13.670/1994 regarding measures by administrative authorities based on a judicial order).

The Data Protection Authority does not share the legal opinion of the respondent that he is to be assigned as a presenting body of the legislative power:

According to Art. 53 para. 1 B-VG, the National Council can establish investigative committees by resolution. Investigative committees are both organizationally and functionally assigned to the legislative power. Art. 53 para. 3 B-VG obliges all mentioned bodies to support the activities of an investigative committee by providing documents and materials as well as through investigations. Para. 3 leg. cit. establishes a right to self-information of the investigative committee to the extent of the subject of investigation (cf. Konrath/Posnik in Kahl/Khakzadeh/Schmid, Commentary on the Federal Constitutional Law B-VG and Fundamental Rights Art. 53 B-VG).

According to § 25 para. 2 VO-UA, a quarter of the members of the (already established) investigative committee may request supplementary evidence requirements (beyond the fundamental evidence resolution). The constitutional requirements according to Art. 53 para. 3 and 4 B-VG are decisive in this regard. They are intended to ensure that the activities of an investigative committee do not jeopardize sources according to Art. 52a para. 2 B-VG, nor influence a decision-making or will-formation process in an organ of federal execution, and that this is not impaired in any other way (cf. Pocketbook Investigative Committees Legal Texts and Explanations, 7th edition, page 73). The system of separation of powers underlying the Federal Constitution and only individual elements connecting powers presupposes an independent area of responsibility for the executive in general, and the federal government and its members in particular. By defining the subject of investigation in Art. 53 para. 2 B-VG, it is fundamentally excluded that an investigative committee deals with the ongoing activities of the federal government or its members and, in particular, with open will-formation processes (cf. Explanation to BGBl. I No. 101/2014, 439 dB XXV. GP). Art. 53 para. 4 B-VG specifies para. 3 in that it clarifies that the information rights of the National Council are not unlimited in the interest of the functionality of the federal government and its members (cf. Pocketbook Investigative Committees Legal Texts and Explanations, 7th edition, pages 14 ff). Overall, it follows from these provisions that the information right of the National Council can therefore be restricted, and the exceptions serve, among other things, to secure the functionality and the independent and uninfluenced decision of the federal government or a member of the federal government in individual cases (cf. Zögernitz, NR-GOG, § 24 VO-UA).

Unlike the respondent claims, he is not obliged to submit to the investigative committee in every case, particularly not in the cases of Art. 53 para. 3 last sentence and para. 4 B-VG, which speaks against the respondent's assumption that he would be functionally attributed to the state function of legislation "as a (mere) investigative body," because in this case he would have no independent discretion regarding the submission of documents. The regulation of Art. 138b para. 1 no. 4 B-VG and the corresponding case law of the Constitutional Court (see especially VfSlg. 19.973/2015) also argue against the respondent's assumption. Therefore, even in the case of the obligation to submit to an investigative committee, the respondent's organizational and functional classification as an organ of administration is not taken away.

In summary, it is therefore possible to submit complaints related to a document submission by an information-obligated administrative body to an investigative committee to the Data Protection Authority, which has comprehensive control authority over – including supreme – organs of administration (§ 35 para. 1 and 2 DSG). However, the role of the Data Protection Authority, as the

Constitutional Court has already stated, is limited in the case of the obligation to submit to an investigative committee to ex-post control (see, for example, the decision of September 25, 2021, UA 6/2021 mwN; see also the – favorable – decision of September 8, 2021, GZ: 2021-0.474.768). An ex-ante control, as sought by the applicant, would inevitably result in the Data Protection Authority stepping in place of the submitting organ, albeit as an independent administrative authority, and thus having to interpret a request according to § 25 VO-UA. This would ultimately lead to a substantive examination of the request and thus to the admissibility of the request from the perspective of the GDPR and the DSG. On the other hand, it would then be in the hands of the Data Protection Authority to (partially) prevent the document submissions to an investigative committee and thereby restrict its investigative activities, without the investigative committee or its members being able to contest this decision due to a lack of party status. The constitutional legislator has provided for the possibility of binding dispute resolution by the Constitutional Court in connection with investigative committees in Art. 138b B-VG (exclusively).

That Art. 138b B-VG does not provide for a possibility for an affected person to prevent a document submission due to the risk of violation of highly personal rights (see again the already cited ruling of September 25, 2021) may represent a gap in the legal protection system, but it cannot lead to establishing jurisdiction for the Data Protection Authority.

Finally, it is noted here that the preliminary ruling request cited by the respondent to the CJEU according to Art. 267 TFEU (decision of the VwGH of December 14, 2021, EU 2021/0009-1 (Ro 2021/04/0006); recorded as C-33/22) concerns the applicability of the GDPR to the processing of personal data by an investigative committee established by a parliament of a member state in the exercise of its control rights over the executive. In the present case, however, a data processing is subject to proceedings that, while related to the activities of an investigative committee, is carried out by an organ of the...

****C.2. On the Mandate Decision in General****

However, even if one were to assume the jurisdiction of the data protection authority, the application would still not be successful.

Mandate decisions typically serve the immediate and official enforcement of urgent measures of an administrative police nature in a single-party procedure. In this respect, they have a provisional character and therefore do not fit into a multi-party procedure, in which a (final) decision can be issued that would definitively regulate the disputed matter among the parties after conducting the appropriate investigations.

Thus, this is an atypical mandate decision of its own kind; however, from the clear wording of the law in line with the applicant's submissions, it can be inferred that the legislator intended to grant the affected party a subjective right to legal protection through the data protection authority. Therefore, the present application must be decided on its merits (cf. the decision of October 29, 2015, GZ: DSB-D215.861/0010-DSB/2015).

According to § 22 para. 4 DSG in conjunction with § 57 para. 1 AVG, the data protection authority is authorized, without prior investigative proceedings, to prohibit the continuation of data processing by mandate decision if the operation of such data processing poses a significant immediate threat to the protectable confidentiality interests of the affected person (danger in delay) and thus accounts for an increased risk potential in cases of danger in delay (cf. Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 8).

Since the issuance of a mandate decision does not require prior investigative proceedings by the data protection authority, it is the responsibility of the applicant to certify the legal requirements for the issuance of the decision together with the application (to make credible, to provide circumstantial evidence; cf. Schmidl in Gantschacher/Jelinek/Schmidl/Spanberger, Commentary on the DSG, § 22 Note 9). A subsequent certification or evidentiary procedure would be incompatible with the character of the decision under § 22 DSG as an urgent measure of an administrative police nature (data protection police emergency order) (cf. the decision of September 24, 2015, GZ: DSB-D215.813/0012-DSB/2015).

The issuance of a mandate decision requires, on the one hand, a material illegality of the data processing, and a justified suspicion is already sufficient for its existence. Therefore, there must be actual indications that justify the assumption of the likelihood that provisions of data protection law have been violated, and this must be presented in a rationally comprehensible manner (cf. VwGH March 21, 2012, 2012/16/0005).

On the other hand, it is necessary that the operation of this data processing poses a significant immediate threat to the protectable confidentiality interests of the affected parties (i.e., danger in delay) (cf. Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 15). Both criteria must be met for the issuance of a mandate decision.

Danger in delay exists if the omission of the official measure would likely lead to the affected parties suffering (further) violations of privacy or even damages that could be prevented by issuing the provisional prohibition of data processing. § 22 para. 4 DSG represents a *lex specialis* to § 57 AVG. This means that the otherwise required examination of the urgency of the measure in relation to the necessary duration of the investigative procedure in the area of data protection is omitted (cf. Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 18).

To fulfill the elements of "danger in delay," a general concern regarding future events is not sufficient (cf. DSK March 30, 2012, K121.765/0008-DSK/2012). The existence of danger in delay must be substantiated with facts that are specific to the individual case. Pure speculation, hypothetical considerations, or merely assumptions based on everyday experience that are independent of the case are not sufficient (cf. Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 20).

****C.3. On the Existence of a Significant Immediate Threat to the Protectable Confidentiality Interests of the Applicant Due to the Operation of the Relevant Data Processing (Danger in Delay):****

First, it should be noted that the data protection authority must, in any case, decide on the application of January 24, 2022, for the issuance of a mandate decision in accordance with § 22 para. 4 DSG in conjunction with § 57 para. 1 AVG in conjunction with Art. 58 para. 2 lit. f GDPR on its merits.

As established, in the context of the supplementary evidence request according to § 25 para. 2 VO-UA of December 16, 2021, a request was directed to the respondent to ascertain whether a financial penalty proceeding had been initiated against the applicant or companies owned by him or in which he held executive functions since 2015, and what number this was conducted under.

Regarding the data processing in question, the applicant argues that the evaluation and transmission of the affected data to the investigative committee is fundamentally not a problem, but rather concerns the forwarding of information or documents to the media by members of the investigative committee.

Concerning the potential existence of an imminent danger, the applicant claims in his introductory submission that, due to the investigative activities of the ÖVP corruption investigative committee, it can be assumed that the data would be transmitted in a timely manner to this very investigative committee. Essentially, the applicant justifies the existence of a significant threat to his confidentiality interests by stating that information or documents concerning him would be shared and ultimately published by third parties (members of the investigative committee).

However, the admissibility of a mandate decision requires that a danger situation is to be feared from the respondent and responsible party in the sense of Art. 4 No. 7 GDPR. In this case, it is not apparent, nor has it been asserted, to what extent this danger situation would be directly caused by the contested data processing by the respondent (especially since this is fundamentally covered by Art. 53 para. 3 B-VG), as the application dated January 24, 2022, is directed against the (upcoming) evaluation and transmission of documents relating to the applicant to the ÖVP corruption investigative committee. The disclosure of this personal data (e.g., to the media) directly by the respondent has not been claimed by the applicant at any time. Rather, the applicant explicitly stated that the data processing by the respondent does not pose a problem in principle.

Thus, the (alleged) immediate threat to his protectable confidentiality interests does not arise from the data processing in question. From the applicant's submissions, only a general concern regarding future events can be derived, which, however, cannot be attributed to the sphere of the respondent. In

the fear that members of the investigative committee would – contrary to existing confidentiality obligations – disclose information they became aware of in the course of their work for the investigative committee to third parties, it is viewed by the data protection authority merely as hypothetical considerations or merely assumptions based on everyday experience (the applicant cites "the notorious permeability of investigative committees"), which are not suitable to certify the existence of a concrete danger situation in the sense of § 22 DSG concerning the respondent (cf. again Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 20).

In summary, it can thus be stated that the alleged threat to the interests of the applicant is seen in the activities of members of the investigative committee, but not in the – here relevant – data processing by the respondent. In any case, it lies outside the sphere of the respondent to influence the data processing after transmission (aside from classification under the InfOG).

The application was therefore to be dismissed as stated.

In the present case, the applicant has submitted an application for the issuance of a mandate decision in accordance with § 22 para. 4 DSG in conjunction with § 57 para. 1 AVG in conjunction with Art. 58 para. 2 lit f GDPR.

For this reason, these legal bases for a mandate decision are also cited in the ruling (§ 22 para. 4 DSG and § 57 AVG). Nevertheless, the dismissal does not take the form of a mandate decision, as the characteristic of imminent danger required by § 57 para. 1 AVG is certainly lacking for the dismissal of the application. A mandate decision – and thus an extended and prolonged legal protection procedure through the possibility of representation – only makes logical systematic sense in the case of a positive administrative police intervention in existing rights (arg: "urgent measures"), but not in the present case of the rejection of such a requested intervention due to the absence of the legal prerequisites (cf. again the aforementioned decision of September 24, 2015).